GEN 1.2 ENTRY, TRANSIT AND DEPARTURE OF AIRCRAFT

Regulations and requirements for advance notification and applications for permission concerning entry, transit and departure of aircraft on international flight.

1 General

All flights into, from or over the Republic of South Africa must be carried out in accordance with the Civil Aviation Regulations, 2011.

No aircraft originating outside the Republic of South Africa shall be allowed to enter and transit South African airspace or land at any South African aerodrome without an approved flight plan, a valid Foreign Operators Permit (FOP) and landing or overflight permit.

For all general flights exempted from an FOP, a landing permit application should be submitted to the Department of Transport three (3) working days prior to the flight operation date.

2 Scheduled Flights

2.1 General

A Foreign airline operating International Scheduled flights to the Republic of South Africa must be designated under the provisions of a bilateral air services agreement to which the State of the airline concerned and the Republic of South Africa are contracting parties and must also be in possession of a valid Foreign Operators Permit issued by the Chairperson of the International Air Services Council, in respect of such flights.

Commercial scheduled foreign operators need to comply with the following when submitting the air operator security program. A foreign air operator providing scheduled international commercial air transport operations in the Republic shall establish, implement and maintain a written supplementary station procedure that meets the national security requirements.

2.2 Documentary requirements for clearance of aircraft

2.2.1 It is a requirement that the under-mentioned documents be submitted by operators, for clearance on entry and departure of their aircraft to and from the Republic of South Africa. All documents listed below must follow the ICAO standard format as set forth in the relevant Appendices to Annex 9 and are acceptable when furnished in English or Afrikaans and completed in legible handwriting.

2.2.2 Aircraft documents required (Arrival/Departure)

Required by	General Declaration	Passenger Manifest	Cargo manifest
Passport Control	Two (Arrival/ Departure)	On request	
Customs	One (Arrival)	On request	On request
Health	One (Arrival)		

Passport Control/Immigration

1) Incoming passengers can only be cleared by Passport Control/Immigration if a general declaration is presented timeously.
2) The following additional information pertaining to the general declaration and cargo manifest is required:

i) General Declaration

a) Particulars in respect of stores and cargo are required.
b) Crew members names.

ii) Cargo Manifest (if requested)

a) The cargo manifest must be supported by air waybills or consignment notes, and receipt of consignment in the absence of which it will be required that the names and addresses of consignees be stated thereon. Information concerning the nature of the goods must be furnished.

2.3 Public health measures applied to aircraft

The following public health measures are required to be carried out in respect of aircraft entering the Republic of South Africa:

a) The pilot in command of an aircraft must, on landing at the first airport, complete and deliver a General Declaration to the Port Health Officer of that airport.
b) At least thirty minutes before arrival the aircraft must be disinfected if arriving from an endemic yellow fever area or a malaria area. This action must be properly recorded in the Health section of the General Declaration. The insecticide to be used must conform to the specifications of the World Health Organisation.
c) Any illness or condition, on board an aircraft, must be recorded on the General Declaration and reported to the Port Health Officer, including but not limited to severe vomiting, diarrhoea and high fever.
d) A certificate of vaccination is required from passengers in the case of yellow fever, when arriving from infected or endemic areas.

3 Non-scheduled flights

3.1 Procedures

Any aircraft of another Contracting State which engages in the carriage, to or from the Republic of South Africa, of passengers, cargo or mail for remuneration or hire on other than scheduled international air services must apply to the Chairperson of the International Air Services Licensing Council for the issuance of a Foreign Operators Permit. These exclude South African operated foreign registered aircraft.

Non-scheduled foreign commercial air transport operators carrying up to 8 passengers or less than 1000KG do not require a foreign operators permit, however operators are required to obtain an overflight and landing clearance from the Department of Transport:
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A Foreign Operator's Permit is not required in respect of a class IV international air services, if:

a) not more that eight passengers or 1000KG of cargo or mail is transported on the inbound flight as well as the outbound flight; and
b) no passengers, cargo or mail is taken on at any point in the territory of the Republic for discharge at any other point in the territory of the Republic, except those passengers or that cargo or mail referred to in subparagraph a).However, a landing clearance issued by the Department of Transport.is required.

3.2 Prohibited or Emergency Landings

3.2.1 An aircraft engaged in either a flight in accordance with the provisions of paragraph 3.1 and paragraph 3.4 or of an authority granted by the Director of Civil Aviation in terms of those paragraphs, shall not, land in the Republic of South Africa before landing at the terminal aerodrome for that flight or land in the Republic of South Africa after taking off from that terminal aerodrome, except in an emergency.

3.2.2 The provisions or paragraph 3.4.1 (a), (b) and (c) shall apply mutatis mutandis to the pilot-in-command of any aircraft who is required to comply with the provisions of paragraph 3.2.1 but who is forced by an emergency to land at or take-off from a place other than the terminal aerodrome and similarly shall apply mutatis mutandis to any passenger or member of the crew of such aircraft.

3.2.3 Any aircraft originating outside the South African border and declaring any emergency shall be quarantined and only be allowed to disembark once approval has been obtained from the relevant border management agencies. Any violation of the above by any aircraft operator is punishable by law.

3.3 Applications for a Foreign Operators Permit

a) Foreign Operators Permit are issued by the South African Civil Aviation Authority. All FOP applications must be submitted electronically on the eServices portal, which is on the SACAA website.Contact details are as follows:
Sibusiso Mngomezulu
Tel: +2772 178 8631 Email: mngomezulus@caa.co.za
Itumeleng Mogashoa
Tel: +2776 943 2494 Email: mogasoai@caa.co.za

b) (1) An application for a Foreign Operators Permit or an amendment thereof must be made on a form as prescribed.
(2) If an applicant wishes to operate more than one class of international air services, the applicant must make a separate application in respect of each separate class.
(3) Upon the granting of an amendment to a Foreign Operators Permit, the permit holder must submit the original permit to the Director of Civil Aviation for cancellation, whereupon a new permit is issued.
(4) In order to satisfy the Chairperson of the International Air Services Licensing Council that an applicant is fit and able to operate the international air service, the Director may require the applicant to submit the following -

a) (i) A plan setting out in detail the manner in which the applicant will ensure that a safe and reliable international air service is operated;
(ii) proof that he complies with all the other requirements mentioned in section 25(2) of the International Air Services Act, 1993 (Act No. 60 of 1993);
b) a certified true copy of the existing valid foreign licence held by the applicant pertaining to the international air service for which application is being made for a permit or amendment of a permit;
c) a certified true copy of the memorandum and articles of association or any other founding document of the applicant if the applicant is not a natural person;
d) a valid guarantee, security or insurance policy in respect of the obligations and liabilities of the applicant which may arise from the operation of the international air service concerned;
e) any other document in support of the applicants ability to operate the international air service concerned.
f) An application fee must accompany the application for a Foreign Operators Permit.
g) Applications for Foreign Operator Permits (FOP's) will be published in Government Gazette for a period of 21 days (inclusive of weekends and public holidays) in line with Section 24 of the International Air Services Act of 1990.
h) The following flights are exempt from obtaining foreign operators permits and should apply for a landing clearance:: Military, General, MEDEVAC, Police, Business, Private, State/head/VIP/VVIP.

3.4 Ports of Entry for aircraft.

In terms of the provisions of the Aliens Control Act,96 (Act 96 of 1991) no person may enter or depart from the Republic of South Africa except through a port of entry, unless authority has been granted to such person to enter or depart from the Republic of South Africa at any other place. The aerodromes listed in par 3.4.1. have all been declared ports of entry, where immigration officers of the Department of Home Affairs grant passport control clearances. The pilot-in-command must ensure that all crew and passengers report to an immigration officer on entry and departure.

3.4.1 Ports of Entry

a) Cape Town International Airport, Cape Town.
b) O R Tambo International Airport, Johannesburg;
c) Bram Fischer International Airport, Bloemfontein;
d) Lanseria International Airport, Johannesburg;
e) Chief Dawid Stuurman International Airport, Port Elizabeth;
f) King Shaka International Airport, Durban;
g) Polokwane International Airport, Polokwane;
h) Kruger Mpumalanga International Airport, Nelspruit;
i) Upington International Airport, Upington;
j) Pilanesberg International Airport, Pilanesberg.

4 Private flights

4.1 Advance notification of arrival

The information contained in the flight plan is accepted as adequate notification of the arrival of incoming aircraft.

4.2 Documentary requirements for clearance of aircraft

Same requirements as for scheduled flights.

4.3 Public health measures applied to aircraft

Same requirements as for scheduled aircraft.

5 Foreign military aircraft

No foreign military aircraft shall fly over or land in the Republic except on the express invitation or with the express permission of the Minister; but any such aircraft so flying over or landing in the Republic shall be exempt from these regulations to such extent and on conditions as are specified in the invitation.

5.1 Documentary requirements of clearance of aircraft

Same requirements as for scheduled aircraft.

5.2 Public health measures applied to aircraft

Same requirements as for scheduled aircraft.

6 Report of Arrival of Aircraft

Except with the special permission of the Commissioner for Customs and Excise, the pilot-in-command of every aircraft entering the Republic of South Africa must make his first landing at a place appointed as a customs and examination station at that aerodrome: provided that these provisions shall not apply if the pilot-in-command is forced by stress of weather, accident or other circumstances beyond the control of the

pilot-in-command, to land at a place not so appointed and he reports the circumstances of this arrival to a member of the police force and as early as possible makes a report to the customs authorities at the place at which such aircraft was next due to land.

The pilot-in-command of any aircraft arriving in the Republic of South Africa whether with or without goods or passengers, shall within 3 hours after landing at any place appointed as a customs and excise airport, but in any event before the landing or embarkation of passengers and crew or the landing and loading of any goods, make due report in writing to the customers authorities at that airport.

7 Report of departure of aircraft

7.1 The pilot-in-command of any aircraft bound from any place within to any place outside the Republic of South Africa is required to report at a customs and excise airport and submit a report outwards in the prescribed form together with a full account of the cargo laden and all non-duty-paid imported or locally manufactured goods shipped as stores on board that aircraft.

7.2 The pilot-in-command of a foreign departing aircraft may not cause or permit the aircraft to depart from a customs and excise airport without first obtaining a certificate of clearance of transfer for the intended flight and the pilot-in-command may not after departure land at any place in the Republic of South Africa other than a customs and excise airport unless forced to do so by stress of weather, accident or other circumstances beyond the control of the pilot-in-command.

7.3 If an aircraft in respect of which a clearance has been issued does not depart from the customs and excise aerodrome within 36 hours of the time when clearance was issued or within such further time as may be allowed by the customs authorities, such clearance lapses and the pilot-in-command shall obtain fresh clearance before causing or permitting the aircraft to depart.

Where a departure aerodrome has no facilities for the transmission of flight plan information, aircraft will be permitted to enter Lesotho and land at Maseru, Moshoeshoe Airport. However, the pilot-in-command shall be required to transmit on the appropriate radio frequency to Maseru Airport Flight Information Unit the requirements as contained in ENR 1.10 soon after the establishment of radio communication contact with Maseru Tower.

Where it is intended to operate to any domestic aerodrome in Lesotho aircraft shall first land at Maseru, Moshoeshoe Airport for Customs, Immigration and Health clearances and to obtain special permit to operate to such domestic airport.